

Ashok Kumar Maurya v. Purvanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 18 November 2019 · Writ-C No. 37324 of 2019 · **Writ dismissed; bill correction relegated to Executive Engineer under Clause 6.5.**

HEADNOTE

The High Court declined writ interference with a District Consumer Forum execution order recording that an earlier complaint order had been implemented, holding that the remedy was an appeal to the State Forum. Challenge to an electricity bill of Rs. 60,329 was relegated to the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Discretionary jurisdiction was not exercised; the writ was dismissed with that observation.

FACTUAL SUMMARY

The petitioner, a consumer of Purvanchal Vidyut Vitran Nigam Ltd., invoked writ jurisdiction to quash the 31 October 2018 order of the District Consumer Redressal Forum, Kaushambi, in Execution Case No. 5 of 2018, which recorded that the Forum's order in Complaint Case No. 52 of 2016 had been implemented. He also challenged an electricity bill of Rs. 60,329 and sought restoration of his electricity connection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Correction of an electricity bill, if any, is to be considered by the Executive Engineer in accordance with Clause 6.5 of the U.P. Electricity Supply Code, 2005; the High Court will not examine the bill or restore supply in writ jurisdiction where that statutory route is available. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL OF RS. 60,329

Relegated to the Executive Engineer under Clause 6.5; not decided on merits. ¶ 1

NOT DECIDED — RESTORATION OF THE PETITIONER'S ELECTRICITY CONNECTION

Prayed for in the writ; neither directed nor refused on merits. ¶ 1